

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR
6 HOUSE BILL NO. 3448

By: Wilk of the House

and

Standridge of the Senate

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10 COMMITTEE SUBSTITUTE

11 An Act relating to the Children and Juvenile Code;
12 requiring group homes to maintain general liability
13 insurance coverage; directing the Department of Human
14 Services to promulgate rules; providing that certain
15 form be completed annually; requiring the group home
16 to maintain form; requiring that the insurance policy
17 or contract be maintained at all times; providing
18 that prevailing party shall be entitled to certain
19 fees and costs; providing for codification; and
20 providing an effective date.

21 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

22 SECTION 1. NEW LAW A new section of law to be codified
23 in the Oklahoma Statutes as Section 1-8-115 of Title 10A, unless
24 there is created a duplication in numbering, reads as follows:

 A. A group home, as defined in Section 1-1-105 of this title,
shall maintain general liability insurance coverage of at least One

1 Hundred Thousand Dollars (\$100,000.00) for each occurrence of damage
2 to off-site personal property. An insurance policy or contract
3 required under this section shall cover damage to off-site personal
4 property that occurs while the child is in the care of the group
5 home.

6 B. The Department of Human Services shall promulgate rules
7 providing for a standard form to be signed and dated by an insurance
8 agent licensed in this state confirming that the group home has an
9 unexpired and uncanceled insurance policy or contract of at least
10 One Hundred Thousand Dollars (\$100,000.00) that meets the
11 requirements of this section. This form shall be completed annually
12 and shall be maintained by the group home.

13 C. The insurance policy or contract shall be maintained at all
14 times in an amount as required by this section.

15 D. The Department shall promulgate rules to implement the
16 provisions of this section.

17 E. The prevailing party in a civil action for damage to off-
18 site personal property that occurs while the child is in the care of
19 the group home shall be entitled to attorney fees and costs.

20 SECTION 2. NEW LAW A new section of law to be codified
21 in the Oklahoma Statutes as Section 2-11-101 of Title 10A, unless
22 there is created a duplication in numbering, reads as follows:

23 A. A group home, as defined in Section 2-1-103 of this title,
24 shall maintain general liability insurance coverage of at least One

1 Hundred Thousand Dollars (\$100,000.00) for each occurrence of damage
2 to off-site personal property. An insurance policy or contract
3 required under this section shall cover damage to off-site personal
4 property that occurs while the child is in the care of the group
5 home.

6 B. The Department of Human Services shall promulgate rules
7 providing for a standard form to be signed and dated by an insurance
8 agent licensed in this state confirming that the group home has an
9 unexpired and uncanceled insurance policy or contract of at least
10 One Hundred Thousand Dollars (\$100,000.00) that meets the
11 requirements of this section. This form shall be completed annually
12 and shall be maintained by the group home.

13 C. The insurance policy or contract shall be maintained at all
14 times in an amount as required by this section.

15 D. The Department shall promulgate rules to implement the
16 provisions of this section.

17 E. The prevailing party in a civil action for damage to off-
18 site personal property that occurs while the child is in the care of
19 the group home shall be entitled to attorney fees and costs.

20 SECTION 3. This act shall become effective November 1, 2026.

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22 COMMITTEE REPORT BY: COMMITTEE ON HEALTH AND HUMAN SERVICES
23 OVERSIGHT, dated 03/05/2026 - DO PASS, As Amended.
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